

**IN THE COMMON PLEAS COURT OF MIAMI COUNTY, OHIO
CIVIL DIVISION**

**THE OTHER WOMAN AND THE
WIFE, LLC**

**Plaintiff/Counterclaim
Defendant.**

vs.

KRISTEN JACOBS,

**Defendant/Counterclaim/Third-
Party Plaintiff.**

vs.

CHELSEA SMALLWOOD

And

OLIVIA NICODEUMUS

Third-Party Defendants.

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CASE NO. 24-498

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JUDGE JEANNINE N. PRATT

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**PLAINTIFF, THE OTHER WOMAN
AND THE WIFE, LLC, AND THIRD-
PARTY DEFENDANT, CHELSEA
SMALLWOOD'S ANSWER TO
DEFENDANT, KRISTEN JACOBS'
COUNTERCLAIM**

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Now comes the Plaintiff and Third Party-Defendant, The Other Woman and the Wife, LLC, and Chelsea Smallwood (collectively "Answering Parties"), by and through counsel, and hereby aver and state as follows in Answer to Defendant, Kristen Jacobs:

FIRST DEFENSE

1. With regard to the allegation set forth in Defendant's Counterclaim at ¶¶ 24, 25, 5, 6, and 7, and Answering Parties, admit same.

2. With regard to the allegation set forth in Defendant's Counterclaim at ¶¶ 1, 4, 17, 18, 19, 21, 22, 26, 27, 28, 29, 30, 31, 32, 38, 50, 51, 56, 62, 69, 71, 72, 78, 84, 89, 94, 98, 104, 106 and 109 Answering Parties are without knowledge sufficient to form a belief as to the truth or veracity of same, and accordingly the allegations are denied.

3. With regard to the allegation set forth in Defendant's Counterclaim at ¶¶ 2, 3, 13, 14, 15, 33, 35, 36, 40, 43, 45, 46, 47, 48, 49, 54, 55, 58, 59, 61, 68, 64, 65, 66, 67, 73, 75, 77, 80, 82, 86, 88, 93, 96, 97, and 107 Answering Parties, deny same.

4. With regard to the allegations set forth in the Defendant's Counterclaim at ¶¶ 60, 74, 76, 81, 87, 92, 100, 101, 102, Answering Parties deny as it seeks a legal conclusion to which no response is required.

5. With regard to the allegations set forth in Defendant's Counterclaim at ¶¶ 52, 57, 63, 70, 79, 85, 90, 99, and 105 Answering Parties incorporate herein each of the admissions and denials set forth above.

6. With respect to the allegations contained in the Defendant's Counterclaim at ¶ 8, Answering Parties admit that Kristen joined TOW's Community Subscription on or around September 2023. However as to the "TOW Terms of Service," the document speaks for itself, and Answering Parties deny the allegations. Any remaining allegations are specifically denied.

7. With respect to the allegations contained in the Defendant's Counterclaim at ¶ 9, the document speaks for itself and the Answering Parties deny. Any remaining allegations are specifically denied.

8. With respect to the allegations contained in the Defendant's Counterclaim at ¶ 10, the document speaks for itself and the Answering Parties deny. Any remaining allegations are specifically denied.

9. With respect to the allegations contained in the Defendant's Counterclaim at ¶ 11, the document speaks for itself and the remaining allegations are specifically denied.

10. With respect to the allegations contained in the Defendant's Counterclaim at ¶ 16, the Answering Parties were aware that Olivia and Kristen were neighbors. As to the remaining allegations asserted in ¶ 16, Answering Parties are without sufficient knowledge to form a belief as to the truth or veracity of same, and accordingly the allegations are denied.

11. With respect to the allegations contained in the Defendant's Counterclaim at ¶ 20, Answering Parties deny reading a text conversation between Kristen and Oliva, depicting Kristen—the wife of the affair—in a negative or false light. As to the remaining allegations contained in the Defendant's Counterclaim at ¶ 20, Answering Parties are without sufficient knowledge to form a belief as to the truth or veracity of same, and accordingly the allegations are denied.

12. With respect to the allegations contained in the Defendant's Counterclaim at ¶ 23, Answering Parties admit that Kristen anonymously joined TOW's private community. As to the remaining allegations contained in the Defendant's Counterclaim at ¶ 23, Answering Parties are without sufficient knowledge to form a belief as to the truth or veracity of same, and accordingly the allegations are denied.

13. With respect to the allegations contained in the Defendant's Counterclaim at ¶ 34, Answering Parties admits Chelsea created content through her social media platforms, by reading screenshotted messages with no identifying information shared with her by Olivia. As to the remaining allegations contained in the Defendant's Counterclaim at ¶ 34, Answering Parties deny the same.

14. With respect to the allegations contained in Defendant's Counterclaim at ¶ 37, Answering Parties deny that Chelsea did not make any effort to protect Kristen or her family's

identity. As to the remaining allegations contained in the Defendant's Counterclaim at ¶ 37, Answering Parties are without sufficient knowledge to form a belief as to the truth or veracity of same, and accordingly the allegations are denied.

15. With respect to the allegations contained in Defendant's Counterclaim at ¶ 39, Answering Parties admit that TOW profits from engagement on its social media pages. As to the remaining allegations contained in the Defendant's Counterclaim at ¶ 39, Answering Parties deny the same.

16. With respect to the allegations contained in Defendant's Counterclaim at ¶ 41, Answering Parties deny engaging in any relentless campaign to harass or threaten Kristen on social media, asserting that she was neither mentioned by name nor identified in any way. As to the remaining allegations contained in the Defendant's Counterclaim at ¶ 41, Answering Parties deny the same.

17. With respect to the allegations contained in Defendant's Counterclaim at ¶ 42, Answering Parties admit that, on or around November 2023, Chelsea sent an email to Kristen alleging that she had engaged in "harassing" behavior and warning that legal action would be taken if such actions did not cease. Answering Parties further admit to Chelsea sending another email alleging that Kristen had misappropriated TOW's intellectual property. As to the remaining allegations contained in the Defendant's Counterclaim at ¶ 41, Answering Parties deny the same.

18. With respect to the allegations contained in Defendant's Counterclaim at ¶ 44, Answering Parties admit that Chelsea sent Kristen's therapist a letter. As to the remaining allegations contained in the Defendant's Counterclaim at ¶ 44, Answering Parties deny the same.

19. With respect to the allegations contained in Defendant's Counterclaim at ¶ 53, Answering Parties admit that Kristen joined TOW's online community by paying the subscription fee. As to the remaining allegations contained in the Defendant's Counterclaim at ¶ 53, Answering

Parties are without sufficient knowledge to form a belief as to the truth or veracity of same, and accordingly the allegations are denied.

20. With respect to the allegations contained in Defendant's Counterclaim at ¶ 83, the assertion that details about Kristen's marriage, including Olivia's affair, are not legitimate concerns of the public seek a legal conclusion which no response is required. As to the remaining allegations contained in the Defendant's Counterclaim at ¶ 83, Answering Parties are without sufficient knowledge to form a belief as to the truth or veracity of same, and accordingly the allegations are denied.

21. With respect to the allegations contained in Defendant's Counterclaim at ¶ 108, Answering Parties admit that Chelsea contacted Kristen's therapist. As to the remaining allegations contained in the Defendant's Counterclaim at ¶ 108, Answering Parties deny the same.

SECOND DEFENSE

22. Defendant's Counterclaim and Third-Party Complaint fail to state a claim upon which relief can be granted.

THIRD DEFENSE

23. Defendant failed to mitigate her damages, if any.

FOURTH DEFENSE

24. Defendant's damages, if any, are the direct and proximate result of the Defendant's own actions or inactions.

FIFTH DEFENSE

25. Defendant's damages, if any, are barred by the equitable doctrines of laches, waiver, estoppel, and unclean hands.

SIXTH DEFENSE

26. Defendant's Third-Party Complaint fails to join all necessary and/or proper parties pursuant to Ohio Rules of Civil Procedure 19 and/or 19.1.

SEVENTH DEFENSE

27. Defendant is bound by the doctrine of truth.

EIGHTH DEFENSE

28. Defendant is bound by the doctrine of retraction.

NINTH DEFENSE

29. Defendant is bound by the doctrine of "unclean hands."

TENTH DEFENSE

30. Claims alleged and damages prayed for proximately resulted from the negligent acts or conduct of Defendant and/or others and/or resulted from circumstances and/or conditions for which these Answering Parties had no power, duty, or right to control or anticipate, and all of which, Defendant assumed the risk.

31. Plaintiffs reserve the right to assert any and all additional affirmative defenses that may become apparent during the pendency of this matter.

WHEREFORE, having fully answered Defendants' Counterclaim and Third-Party Complaint, Plaintiffs respectfully request this Court to dismiss same at Defendants' cost.

Respectfully submitted,

/s/ Michael W. Sandner

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that the foregoing *Plaintiff The Other Woman and The Wife, LLC and Third-Party Defendant, Chelsea Smallwood's Answer to Defendant Kristen Jacobs' Counterclaim* was filed electronically in accordance with this Court's electronic filing guideline on this 3rd day of January, 2024. Notice of this filing will be sent to all parties by operation of this Court's electronic filing system or will be served by ordinary U.S. mail, postage prepaid, pursuant to applicable Miami County Local Rules, upon counsel or parties who are not sent electronic notification. Parties may access this filing through the Court's electronic filing system.

/s/ Michael W. Sandner

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